

13. S-PR-0013766 In Re the Matter of Nishikida, Michiko

Petition for attorney fees is recommended for approval as prayed.

14. S-PR-0013781 In Re the Estate of Brar, Premjeet

Petition to administer estate (B Sohi)

In light of the reported death of petitioner, it is recommend the pending petition to administer estate (B Sohi) be dropped from calendar.

Petition to administer estate (J Brar)

Missing proof of publication of notice of hearing.

Missing required allegations at ¶ 5a(3)–(4) (RDP) and (7)–(8) (issue of predeceased child(ren)).

Note: missing signed Duties form (DE-147). The clerk cannot issue letters until the Duties form is filed. C.R.C. 7.150.

15. S-PR-0013782 In Re the Estate of Sohi, Puneet

In light of the reported death of petitioner, it is recommended the pending petition to administer estate (B Sohi) be dropped from calendar.

16. S-PR-0013961 In Re the Hammack Liv. Trust

Appearance is required for continued hearing on petition to determine trust property.

It is again recommend the petition to determine trust property be denied.

Transfer of real property to a trust or creation of a trust for real property requires a writing. See Prob.C. § 15200(a)–(b); see also *Estate of Heggstad* (1993) 16 Cal.App.4th 943; *Ukkestad v. RBS Asset Finance Inc.* (2015) 235 Cal.App.4th 156. The writing relied on by petitioner does not describe the subject property. Nor is the subject property described elsewhere in the trust or in either trust restatement. The fundamental facts of *Heggstad* were the identifying description of the property in the trust documents ("All the trust property was identified in a document titled schedule A;" although "misabeled," there was "no dispute as to the nature of the decedent's interest in this [described] property") and the declaration that "the property described in schedule A" was transferred to Mr. Heggstad as trustee." *Heggstad*, supra, at 946–947. It was that "written declaration of trust" that was upheld by the court. *Id.* at 950.